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File No.: EXP202210207

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on September 23, 2022. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that they are a tenant of a dwelling, being a neighbor of the respondent, and that the respondent has installed a surveillance camera at the entrance of their dwelling that focuses on a common area existing between both dwellings, without the area being marked with informative signs indicating that it is under surveillance.

Along with the complaint, they provide images of the location of the camera and what it captures, as well as a conversation with the owner of the property where both dwellings are located.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not collected by the responsible party; the forwarding was reiterated on 25/10/2022 by certified postal mail and was again returned marked as "absent."

No response has been received to this forwarding letter.

THIRD: On November 29, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On March 14, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: Upon receiving the initiation agreement, the respondent submitted allegations in which, in summary, they stated:

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28001 – Madrid
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2/8

- That they have the owner's permission to install the cameras, and that they do not affect the privacy of the neighbors. That the area where the main door camera looks is for their own enjoyment, and not for the neighbors, being the only one that visualizes common areas.
- That they have warning signs, that they are a CCTV installer, and that they know what they are doing.

SIXTH: On 11/04/2023, it was agreed to open a period for the practice of evidence, requesting the respondent to,

"with respect to the image provided as evidence of the field of vision recorded by the installed surveillance camera, specify which part corresponds to the common area and which part corresponds to the private area of their dwelling."

SEVENTH: On April 24, 2023, a proposal for resolution was formulated, proposing:

- That the Director of the Spanish Agency for the Protection of Data sanction A.A.A., with NIF ***NIF.1,
- For an infringement of Article 5.1.c) of the GDPR classified under Article 83.5 of the GDPR, with a

fine of THREE HUNDRED EUROS (300 euros).

- For an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of THREE HUNDRED EUROS (300 euros).

That the Director of the Spanish Agency for the Protection of Data order A.A.A., with NIF ***NIF.1, to, pursuant to Article 58.2.d) of the GDPR, within 30 days, prove that they have proceeded to:

- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that it does not capture:

- common areas of the dwelling.
- the adjoining dwelling.

- The installation of an informative device, in a sufficiently visible place and with the specifications regulated in Article 22 of the LOPDGDD.

EIGHTH: On April 24, 2023, the respondent submitted a new written statement of allegations to the proposal for resolution, in which, in summary, they indicate:

"Today I received the notification of the sanction and there is something I do not understand! The images captured by the camera are indeed stored in an XVR for no more than a month and the use is in case we have a theft. The neighbors who have reported are moving to another house this month, but they have done everything because they have a dog locked up 24 hours a day, 7 days a week in an old chicken coop and do not want images of that to be seen.

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28001 – Madrid

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3/8

The sign complies with regulations and bears the name of my company, which is dedicated to installing CCTV equipment. If they want, what I can do is cover the "common" area, which is not recorded, but I believe that if the owner accepts the cameras, they have the right to do so, and the tenants must accept it."

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: It is evidenced, according to the image attached to the file by the responding party, that at least one camera has a field of vision that affects common areas.

SECOND: It is evidenced that, although according to the image provided by the responding party, there are signs warning of the existence of video cameras, the information they provide is insufficient and does not meet the requirements established by Article 22 of the LOPDGDD, as it does not include either the identity of the responsible party or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In relation to the allegations presented regarding the proposed resolution, the following responses are provided:

- The responding party alleges that the images captured by the camera are stored in an XVR for no

more than a month and that the use is for the purpose of addressing any theft. The neighbors who have reported this are moving to another house this month, but they have done everything because they have a dog locked up 24 hours a day, 7 days a week in an old chicken coop and do not want images of this to be seen.

In this regard, this Agency reminds that Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video systems for the purpose of preserving the safety of persons and property, as well as their facilities.

The processing must be adjusted and proportional to the purpose it is directed at, so the processing of excessive data must be restricted or the data must be deleted. That is to say, cameras and video cameras installed for security purposes may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

In this case, the images provided by the complaining party show that the field of vision of the cameras affects common areas of use in the residences of both the complaining party and the responding party.

- The responding party alleges that the sign complies with regulations and bears the name of their company.

In this regard, as previously indicated, it should be noted that, while there is a sign indicating that it is a video-monitored area, it is not true that it meets the requirements established by Article 22 of the LOPDGDD, as it does not include either the identity of the responsible party or the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

III

It is considered that the facts presented violate the provisions of Article 5.1.c of the GDPR, which states:

Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

This could imply the commission of an infringement classified under Article 83.5 of the GDPR, which states the following:

“Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

C/ Jorge Juan, 6

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28001 – Madrid

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5/8

"According to the provisions of Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and will be subject to a three-year statute of limitations, which involve a substantial breach of the articles mentioned therein, particularly the following:

(...)

- a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

IV

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

- 1.- Natural or legal persons, whether public or private, may establish a video surveillance system for the purpose of ensuring the safety of persons and property, as well as their facilities.
- 2.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and

Article 22 of the LOPDGDD must be fulfilled.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system concerning video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is considered that the facts presented violate the provisions of Article 13 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; C/ Jorge Juan, 6

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6/8

b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered minor in accordance with Article 74.a of the LOPDGDD, which establishes that:

"Minor infringements shall be deemed to be those that are merely formal in nature from the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679."

V

In accordance with the provisions of Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...", it is indicated that the party being claimed must proceed to:

- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that it does not capture:

- common areas of the dwelling.
- the adjoining dwelling.

- The installation of an informational device, in a sufficiently visible location and with the specifications regulated in Article 22 of the LOPDGDD.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific

instruments for implementing them corresponds to the sanctioned party, as it is the controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

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28001 – Madrid
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7/8

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: To order A.A.A., with NIF ***NIF.1 pursuant to Article 58.2.d) of the GDPR, for an infringement of Article 5.1.c) of the GDPR classified under Article 83.5 of the aforementioned Regulation, and for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, to proceed within 30 days from the date this resolution becomes enforceable, to:

- The removal of the camera or video camera system from the current location or its reorientation, in such a way that the viewing of the images observed evidences that it does not capture:

- common areas of the dwelling.
- the adjoining dwelling.

- The installation of an informative device, in a sufficiently visible location and with the specifications regulated in Article 22 of the LOPDGDD.

THIRD: NOTIFY this resolution to A.A.A.

FOURTH: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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8/8

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file

a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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